

CITY CONTRACT NO. _____

**U.S. DEPARTMENT OF THE TREASURY CORONAVIRUS STATE AND LOCAL
FISCAL RECOVERY FUND SUBAWARD CONTRACT BETWEEN THE CITY OF
CHEYENNE AND COMEA INC.**

This U.S. DEPARTMENT OF THE TREASURY CORONAVIRUS STATE AND LOCAL FISCAL RECOVERY FUND AWARD CONTRACT ("Contract") (CFDA 21.019) is made by and between the City of Cheyenne, a municipal corporation existing under the laws of the State of Wyoming ("CITY"), located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and COMEA Inc. (SUBGRANTEE), whose address is 1504 Stinson Avenue, Cheyenne, Wyoming 82001. The City and the Subgrantee are collectively referred to as "Party" or "Parties". In consideration of the promises and covenants set forth below, the parties agree as follows:

WHEREAS, the CITY is currently experiencing a surge in its homeless population as a result of poverty.

WHEREAS, it is the mission of the SUBGRANTEE to provide a safe, secure and temporary shelter to men, women and children who are experiencing homelessness because they are poor.

WHEREAS, the CITY wishes to donate monies to the SUBGRANTEE for necessary support of the poor including, but not limited to, temporary shelter for men, women and children.

NOW, THEREFORE, the Parties agree as follows:

1. **Recitals Incorporated.** The foregoing recitals are incorporated herein by reference into this Agreement.

2. **Purpose of Contract.** The CITY shall provide U.S. Department of the Treasury Coronavirus State and Local Fiscal Recovery Funds to SUBGRANTEE in the amount set forth in Section 4, and SUBGRANTEE has undertaken and completed materials, projects and/or services (collectively, the "Project") described in Attachment A attached hereto. Performance by SUBGRANTEE of the requirements of this Contract and compliance with all American Rescue Plan program rules and regulations is a condition to SUBGRANTEE'S receipt of monies hereunder. The City has determined that this project meets the following threshold requirements and is in keeping with Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970 (URA):

- (1) The Project responds to a disproportionate impact caused by the COVID-19 public health emergency.
- (2) The Project will result in providing necessary assistance to the poor by serving homeless individuals and/or families.
- (3) Utilizes SLFRF-ARP funding for costs that:
 - (a) Are allowable, reasonable, and allocable under 2 CFR Part 200 – Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards;
 - (b) Do not duplicate financial assistance received from other federal sources;
 - (c) Do not exceed the total need for financial assistance;

- (d) Were not incurred prior to March 3, 2021 or after December 31, 2024; and,
- (e) Evidence commitment of all funding necessary to fully fund the Project.
- (4) Are documented properly and provided as requested by the CITY for quarterly reporting as required by the U.S. Treasury for SLFRF-ARP funding.
- (5) The project is properly zoned for the intended use.
- (6) No relocation of persons will result from the proposed acquisition.

3. Term of Contract Agreement and Required Approvals. This Contract is not effective until all parties have executed it and all required approvals have been granted. The term of the Contract is from February 28, 2022 – September 1, 2022 (“Term”); the Project shall be completed during the Term.

4. Payment. The CITY agrees to grant monies to SUBGRANTEE for acquisition of real property to be used to increase available emergency and temporary shelter to support Cheyenne’s homeless population. The total payment to SUBGRANTEE under this Contract shall not exceed \$650,000.00 (“Grant Award”). Payment will be made to the title company at the time of closing. Following closing on the real property, pursuant to Attachment A, the SUBGRANTEE shall obtain an independent appraisal. Should the value of the real property appraise at less than the amount of this Grant Award plus the \$350,000 award from Laramie County, the CITY should fund the difference using monies from its General Fund reserves. In no event should the SUBGRANTEE return the real property to the CITY. For all relevant times as outlined in this Contract, the real property shall remain the sole and exclusive property of the SUBGRANTEE.

5. Responsibilities of the CITY Regarding the Project. In undertaking and completing the Project, the SUBGRANTEE further agrees as follows:

a. Professional Services. The SUBGRANTEE agrees they have performed all aspects of the Project in a professional manner and in accordance with the degree of care, competence and skills that would be exercised by a SUBGRANTEE under similar circumstances, to the satisfaction of the CITY.

b. Project Readiness. The SUBGRANTEE agrees that the title commitment issued by a title insurer licensed in Wyoming does not include any conditions or requirements that are materially and substantially adverse to the feasibility of the project.

c. Project Feasibility and Viability. The SUBGRANTEE agrees that if they are using additional federal funding other than SLFRF-ARP there will be additional federal requirements.

i. Should the SUBGRANTEE wish to sell the real property, the SUBGRANTEE shall follow the Reversion of Assets clause pursuant to paragraph 5(h) below,

ii. The SUBGRANTEE agrees to follow the requirements set forth in Attachment A, which include, but are not limited to the acquisition of an independent appraisal report within a timely manner and a Phase I Environmental Assessment for the project.

iii. If the building is over 50 years of age or located in a local, state or National Register historic district, then a Historic Preservation review of the project completed through consultation with the State Historic Preservation Office

(SHPO) is required. Applicants will provide evidence of the consultation and any additional surveys or reports identified through this consultation with SHPO.

d. Insurance and Bonding. The SUBGRANTEE shall carry sufficient insurance coverage to protect contract assets from loss due to theft, fraud and/or undue physical damage and, as a minimum, shall purchase a blanket fidelity bond covering all employees in an amount equal to cash advances from the CITY. The SUBGRANTEE shall provide, by self-insurance or other means, and maintain and/or cause its sub-contractors to provide and maintain appropriate insurance in an amount not to exceed as follows:

Commercial General Liability (Including Products and Completed Operations; Explosion, Collapse and Underground if applicable to the hazards of a specific project.)	\$1,000,000 per Occurrence \$2,000,000 Aggregate
Business Automobile Liability	\$1,000,000 (Combined Single Limit)
Workers' Compensation <i>OR</i> Employer's Liability	Statutory \$500,000 Each Accident \$500,000 Each Disease-Policy Limit \$500,000 Disease/Each Employee

e. Procurement and Administrative Regulations. SUBGRANTEE agrees to comply with federal procurement and administrative regulations as stated in 2 C.F.R. § 215 Uniform Administrative Requirements for Grants and Agreements with Institutions of Higher Education, Hospitals and Other Nonprofit Organizations: as enacted in regulations by the U.S. Department of Health and Human Services. SUBGRANTEE also agrees to comply with the Contract Provisions for Non-Federal Entity Contracts Under Federal Awards found in 2 C.F.R. § Appendix II to Part 200.

f. Compliance with Laws. In the interpretation, execution, administration and enforcement of this Contract, SUBGRANTEE agrees to comply with all applicable state and federal laws, rules, and regulations, including but not limited to:

i. SUBGRANTEE agrees to comply with all federal requirements governing Contracts that are applicable, including but not limited to 2 C.F.R. § 230; Cost Principles for Non Profit Organizations; and OMB Circular A-133 Audits of State and Local Governments. The Single Audit Act of 1984, 31 U.S.C. §§ 7501-7 further defines auditing responsibilities and SUBGRANTEE agrees to comply therewith.

ii. SUBGRANTEE further covenants that the Project has been conducted and administered in conformity with the Civil Rights Act of 1964, 42 U.S.C. § 2000 *et seq.* and the Fair Housing Act, 42 U.S.C. § 3601 *et seq.* and that it has affirmatively furthered fair housing.

iii. SUBGRANTEE shall comply with "Equal Opportunity in Federal Employment", Exec. Order No. 11, 246, 30 Fed. Reg. 12,319 (1965) as amended

by Exec. Order No. 11375, 32 Fed. Reg. 14,303 (1967); as supplemented in the Department of Labor regulations, 41 C.F.R. § 60 (1998), the Civil Rights Act of 1964, 42 U.S.C. § 2000 *et seq.*, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105 *et seq.*, and any rules and regulations related thereto. SUBGRANTEE shall not discriminate against a qualified individual with a disability and shall comply with the Americans with Disabilities Act of 1990, 42 U.S.C. § 12101 *et seq.*, and any rules and regulations related thereto. SUBGRANTEE shall assure that no person is discriminated against based on the grounds of sex, race, religion, national origin or disability in connection with the performance of this Contract.

g. Monitor Activities. The CITY shall have the right to monitor all activities of the SUBGRANTEE related to this Contract. This shall include, but not be limited to, the right to make site inspections at any time, to bring experts and consultants on site to examine or evaluate completed work or work in progress, and to observe all SUBGRANTEE personnel in every phase of performance of work related to this Contract.

h. CITY to Keep Informed: The SUBGRANTEE shall keep fully informed of all federal and state laws, local laws, regulations and all other orders and decrees of bodies or tribunals having any jurisdiction or authority which may, in any manner, affect the duties and responsibilities to be performed by SUBGRANTEE under the terms and conditions of this Contract.

i. Reversion of Assets. Pursuant to 2 C.F.R. § 200.311, SUBGRANTEE agrees that upon the expiration of this contract, they shall ensure that any real property under the SUBGRANTEE's control that was acquired in whole or in part with federal funds in excess of \$5,000 is either: 1) used according to the intended purpose as described in Section 2 until five (5) years after expiration of this contract or such longer period of time as determined appropriate by the CITY. Any change in use shall require prior written approval of the SUBGRANTEE and the CITY or 2) if disposed of, the manner shall result in the CITY being reimbursed in the amount of the current fair market value of the property less any portion of the value attributable to expenditures of non-federal funds for acquisition of or improvement to the property.

j. Retention of Records. SUBGRANTEE agrees to retain all records related to the Project which are required to be retained pursuant to this Agreement or the American Rescue Plan program rules and regulations for three years following CITY's date of notice to SUBGRANTEE of administrative closeout of the Grant.

k. Prohibition on Lobbying. In accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by the SUBGRANTEE or its subcontractors in connection with lobbying Congressmen, or any other federal agency in connection with the award of a federal grant, contract, cooperative agreement or loan.

l. Suspension and Debarment. By signing this contract, SUBGRANTEE certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction nor from federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this agreement suspended, debarred or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension) and CFR 44 Part 17, or are on the disbarred vendors list. Further, SUBGRANTEE agrees to notify agency by certified mail should it

or any of its agents become debarred, suspended, or voluntarily excluded during the term of this agreement.

m. Federal Audit Requirements. SUBGRANTEE agrees that if it expends an aggregate amount of seven hundred fifty thousand dollars (\$750,000) or more in federal funds during its fiscal year, it must undergo an organization-wide financial and compliance single audit. SUBGRANTEE agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and OMB Circular A-133, Audits and States, Local Governments, and Non-Profit Organizations. If findings are made which cover any part of this award, SUBGRANTEE shall provide one copy of the audit report to CITY and require the release of the audit report by its auditor to be held until adjusting entries are disclosed and made to CITY records.

6. Responsibilities of the CITY. The CITY will, at its discretion, assist in providing SUBGRANTEE access to information, including without limitation providing SUBGRANTEE with information concerning SLFRF American Rescue Plan requirements, rules and regulations and other statutes and regulations referred to herein, and will cooperate with SUBGRANTEE whenever possible. CITY shall have no obligations, other than those specifically set forth herein, regarding the Project or its performance.

7. Special Provisions.

a. Limitation on Payments. The CITY's obligation to pay SUBGRANTEE for Project activities rendered pursuant to this Contract is conditioned upon the availability of state or federal government funds that are allocated to pay the SUBGRANTEE hereunder. If Contract monies are not allocated and available for the CITY to pay SUBGRANTEE for the performance of the Project, the CITY may terminate this Contract at any time in its discretion without further liability or obligation hereunder.

b. Unavailability of Funds. The CITY shall notify SUBGRANTEE at the earliest possible time if this Contract will or may be affected by a shortage or unavailability of funds. No liability shall accrue to the CITY in the event termination of this Contract occurs or this Contract is affected in any other way by a lack of funds. The CITY shall not be obligated or liable for any future payments due or promised hereunder or for any damages to the SUBGRANTEE or any other person or entity as a result of termination under this section.

c. No Finder's Fees. No finder's fee, employment agency fee, broker fee or other such fee.

8. Default and Remedies. In the event the SUBGRANTEE defaults or is deficient in the performance of any term of this Contract or any requirements of the American Rescue Plan program rules and regulations, then the CITY shall have the right to exercise all remedies provided by law or in equity, including without limitation:

a. Immediately terminating this Contract without further liability or obligation of the CITY;

b. Issuing a letter of warning advising the SUBGRANTEE of the deficiency and putting them on notice that additional action will be taken if the deficiency is not corrected or is repeated;

c. Recommending, or requesting SUBGRANTEE to submit proposals for corrective actions, including the correction or removal of the causes of the deficiency; and,

d. Advising SUBGRANTEE that this Contract will no longer be acceptable and that additional assurances will be required in such form and detail as the CITY may require.

9. General Provisions.

a. **Amendments.** Any changes, modifications, revisions or amendments to this Contract which are mutually agreed upon in writing by the parties hereto shall be incorporated by written instrument, signed by all parties to this Contract.

b. **Assignment.** No Party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning Party, which approval shall not be unreasonably withheld.

c. **Applicable Law/Venue.** The construction, interpretation and enforcement of this Contract shall be governed by the laws of the State of Wyoming. The Courts of the State of Wyoming shall have jurisdiction over this Contract and the parties, and exclusive venue for any action shall be in the First Judicial District, Laramie County, Cheyenne, Wyoming.

d. **Compliance with Laws.** The Parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this Contract.

e. **Assumption of Risk.** SUBGRANTEE shall be responsible for any loss of state or federal funding, either administrative or program dollars, due to SUBGRANTEE'S failure to comply with this Agreement and all state or federal requirements. The CITY shall notify SUBGRANTEE of any state or federal determination of noncompliance.

f. **Attorneys' Fees and Costs.** If the CITY has to enforce this Contract as a result of a default in the performance of this Contract, the CITY shall be entitled to its reasonable attorneys' fees and costs incurred in such enforcement.

g. **Confidentiality of Information:** The SUBGRANTEE acknowledges that information it may receive or have access to as a result of its performance under this agreement may be confidential. SUBGRANTEE agrees that it shall comply with all applicable laws and regulations, whether state or federal, in the collection, maintenance and release of such information. The CITY and its agents, or authorized representatives, shall have access to all confidential information in accordance with the requirements of state and federal laws and regulations. Any other parties will be granted access to confidential information only after complying with the requirements of state and federal laws and regulations pertaining to such access. Nothing herein shall prohibit the disclosure of information in summary form, including the publishing of reports of services provided in this Contract, so long as the identity of the client remains confidential and all other State & Federal laws and regulations are met.

h. **Conflict of Interest:** The Parties confirm that, to their knowledge, no CITY employee has any personal or beneficial interest whatsoever in the services described herein. No staff member of the SUBGRANTEE, compensated either partially or wholly with funds from this Contract, shall engage in any conduct or activity that would constitute a conflict of interest relative to this Contract.

i. **Indemnification:** To the fullest extent permitted by law, SUBGRANTEE shall indemnify, defend and hold harmless the CITY, and its officers, agents, employees, successors and assigns from any cause of action, losses, injuries, liabilities, damages, claims, demands or costs arising from or in connection with this Contract (including reasonable attorneys' fees) (collectively "Claims") arising out of all activities in connection with the Project, Grantee's (and any sub-grantee's) performance under this Contract, or failure by SUBGRANTEE (or any sub-grantee) to comply with the terms of this Agreement or any American Rescue Plan program rules and/or regulations. SUBGRANTEE shall be solely liable and responsible for all acts or omissions in connection with the Project or the performance of the Project or this Contract (including without limitation the acts, omissions or performance of the Project or this Contract by any sub-grantee), including without limitation all Claims arising in connection therewith, and the CITY (its officers, agents, employees, successors and assigns) shall have no liability to SUBGRANTEE, any sub-grantee or any third party for, and shall be released from, all such Claims.

j. **Independent Contractor:** SUBGRANTEE shall function as an independent contractor for the purposes of this Contract and shall not be considered an employee of the CITY for any purpose. SUBGRANTEE shall assume sole responsibility for any debts or liabilities that may be incurred by the SUBGRANTEE in fulfilling the terms of this Contract and shall be solely responsible for the payment of all federal, state and local taxes that may accrue because of this Contract. Nothing in this Contract shall be interpreted as authorizing SUBGRANTEE or its agents and/or employees to act as an agent or representative for or on behalf of the CITY, or to incur any obligation of any kind on the behalf of the CITY. SUBGRANTEE agrees that no health/hospitalization benefits, workers' compensation and/or similar benefits available to CITY employees will inure to the benefit of SUBGRANTEE or SUBGRANTEE'S agents and/or employees as a result of this Contract.

k. **Kickbacks:** SUBGRANTEE warrants that no gratuities, kickbacks or contingency fees were paid in connection with this Contract, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Contract.

l. **Notices:** All notices arising out of, or from, the provisions of this Contract shall be in writing and given to the parties at the address provided under this Contract, either by regular U.S. mail or delivery in person. Delivery shall be deemed to have occurred 3 days following deposit in the U.S. mail or upon delivery in person.

m. **Prior Approval:** This Contract shall not be binding upon either party, no services shall be performed under the terms of this Contract, and no funds will be disbursed hereunder until all necessary approvals and actions have occurred as determined by the CITY in its discretion and this Contract has been reduced to writing and signed by both parties.

n. **Severability:** Should any portion of this Contract be judicially determined to be illegal or unenforceable, the remainder of the Contract shall continue in full force and effect as if the illegal or unenforceable term was omitted.

o. **Governmental Immunity:** The CITY does not waive its governmental immunity, as provided by any applicable law including Wyo. Stat. § 1-39-101 *et seq.*, by entering into this Agreement. Further, the CITY fully retains all immunities and defenses

provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Contract.

p. Force Majeure. The performance of this Contract by the Parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the Parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Contract. This Contract may be cancelled by any Party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other Party.

q. Taxes: SUBGRANTEE shall pay all taxes and other such amounts required by federal, state and local law, including but not limited to social security taxes, workers' compensation, unemployment insurance and sales taxes in connection with performance of the Project and this Contract.

r. Time is of the Essence: Time is of the essence in the performance by SUBGRANTEE of all provisions of the Contract.

s. Waiver: The waiver of any breach of any term or condition in this Contract shall not be deemed a waiver of any prior or subsequent breach.

t. Titles Not Controlling: Titles of sections are for reference only and shall not be used to construe the language in this Contract.

u. Third Party Beneficiary Rights: The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Contract shall not be construed so as to create such status. The rights, duties and obligations contained in this Contract shall operate only between and for the benefit of the parties to this Contract.

v. Entirety of Contract: This Contract, consisting of nine (9) pages, and Attachment A, consisting of two (2) pages, represent the entire and integrated Contract between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

[THE REST OF THIS PAGE IS INTENTIONALLY LEFT BLANK]

10. Signatures. By signing this Contract, the parties represent and warrant that they have read and understood it, that they agree to be bound by the terms of the Contract, that they have the authority to sign it, and that they have received a signed and dated copy of the Contract.

The effective date of this Contract is the date of the signature last affixed to this page.

CITY OF CHEYENNE, WYOMING

By: _____
Patrick J. Collins, Mayor Date: _____

By: _____
Kristina F. Jones, City Clerk Date: _____

COMEA, INC

By: _____
Robin Zimmer, Executive Director Date: _____

REVIEWED AND APPROVED AS TO FORM ONLY

By: _____
Stefanie Boster, City Attorney Date: _____

Attachment A

The City shall provide U.S. Department of the Treasury Coronavirus State and Local Fiscal Recovery funds to COMEA Inc. for the purpose of providing necessary support of the poor through the acquisition of additional temporary shelter space for homeless men, women, and children.

The SUBGRANTEE agrees to undertake, complete, and provide to the CITY at their own expense and with due diligence the following reports and materials in reference to the Project:

1. Independent Appraiser Report

A detailed appraisal must be prepared for all real estate acquisitions other than those of low value as defined in 49 C.F.R. § 18.3 as "land, including land improvements, structures and appurtenances thereto, excluding movable machinery and equipment." The acquisition of easements and rights of way are also considered real estate acquisitions. The detailed appraisal must follow appropriate nationally recognized appraisal standards including the Uniform Appraisal Standards for Federal Land Acquisition.

A detailed appraisal must include at least the following:

- the purpose of the appraisal;
- a definition of the estate being appraised;
- a statement of assumptions and limiting conditions affecting the appraisal;
- an adequate description of the physical characteristics of the property being appraised and, if a partial acquisition, an adequate description of the remaining property;
- a statement of the known and observed encumbrances, if any;
- title information;
- location;
- zoning;
- present use;
- an analysis of the highest and best use;
- at least a five (5) year sales history of the property;
- all relevant and reliable approaches to value (consistent with accepted professional appraisal practices);

When sufficient market sales data are available to reliably support the fair market value for the specific appraisal problem encountered, the recipient may require only the market approach. If more than one (1) approach is utilized, there must be an analysis and reconciliation of approaches to value that are sufficient to support the appraiser's opinion of value.

- a description of comparable sales including a description of all relevant physical, legal and economic factors such as parties to the transactions, sources and methods of financing and verification by a party involved in each transaction;
- a statement of value and, if a partial acquisition, a statement of value of the damages and benefits, if any, to the remaining real property, where appropriate;
- the effective date of the valuation;
- date of the appraisal;
- a property analysis should be completed for any acquisition that involves real property other than vacant land (i.e. dwellings, storage sheds, buildings, fences, etc.) if this is not part of the appraisal. The analysis should consist of a list and description of all such items and include a photograph of each item. This analysis should be completed before the offer to purchase; and
- signature and certification of the appraiser.

To the extent permitted by law, the appraiser shall disregard any change in the fair market value of the property caused by the potential project or by the likelihood that the property would be acquired for the project.

2. Zoning Verification
3. FEMA Floodplain Map
4. Completed Environmental Review forms
5. Phase 1 Environmental Assessment

All subawards for infrastructure projects are subject to federal environmental and real property requirements, including the National Environmental Policy Act (NEPA). Subrecipients must comply with Davis-Bacon wage requirements, environmental rules and regulations, and the property and construction-related requirements of 2CFR200 and 13CFR314.